IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 7

COMP.APPL/62(CH)2024
and
CP (CAA)No. 20/Chd/Hry/2023
(2nd Motion)

IN THE MATTER OF:

Amon Estates Pvt. Ltd. & Ors. …Transferor Companies

With

DLF Southern Towns Pvt. Ltd. …Transferee Companies

Under Section: 230-232 of CA 2013, Rule 11 of NCLT

Order delivered on 25.10.2024

CORAM:

SH. UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Petitioner Companies	:	Dr. U.K. Chaudhary, Senior Advocate Mr. Pulkit Goyal, Advocate Mr. Abhinav Sood, Advocate Ms. Manisha Chaudhary, Advocate Ms. Manish Sharma, Advocate Mr. Mansumer Singh, Advocate
For the Income Tax Deptt.	:	Mr. Yogesh Putney, Senior Standing Counsel.
For the OL	:	Mr. Edward Augustine George, Advocate
For the RoC	:	Mr. Vineet Khatri, Company Prosecutor.

ORDER

COMP.APPL/62(CH)2024

This application has been filed under Rule 11 of the NCLT Rules to place on record some documents. The same are taken on record subject to just exceptions.

Thus, CA No. 62/2024 is disposed of accordingly and the same be tagged with the main petition for reference purpose.

CP (CAA)No. 20/Chd/Hry/2023

Compliance affidavit has been filed by learned counsel for the petitioner companies vide Diary No. 1523/8 dated 23.08.2024. The same is taken on record. It is pointed out by learned senior counsel for the petitioner companies that due to some typographical mistake in the last order dated 27.09.2024 in last paragraph at page no. 2, the appointed date which was proposed to be changed is 01.04.2024 instead of 01.04.2021, however the said changed appointed date was written as 01.04.2022. The said correction is made accordingly being a typographical error. Accordingly the first line of the last para of the order dated 27.09.2024 reads as under:-

"*The counsel of petitioner companies has submitted that the petitioner companies proposed to change the appointed date to 01.04.2024 instead of 01.04.2021 as mentioned in the scheme.*"

Learned counsel for the petitioner companies is directed to file consent of shareholders of the company to whom the shares would be issued after the Scheme. Let the same be done within one week. List the matter on 13.11.2024 in supplementary list.

-sd-
(UMESH KUMAR SHUKLA)
MEMBER (T)

-sd-
(HARNAM SINGH THAKUR)
MEMBER (J)

SM